

		Defendant would be violating her fiduciary duties as a member of the LLC if she diverted business or assets from the LLC. Notably, Defendant's opposition does not argue that the LLC should not be dissolved or that it is unlikely Plaintiff will prevail on his claim for dissolution. Plaintiff has submitted sufficient evidence to demonstrate it is likely he will prevail on his request to dissolve the LLC based on the undisputed evidence that the parties are no longer willing or able to cooperate in operating the LLC. In fact, both parties apparently want to dissolve the LLC but cannot agree on terms of dissolution. Balance of Harms: Plaintiff seeks a broad injunction which not only precludes Defendant from soliciting the LLC's clients but generally prohibits Defendant from "engaging in or soliciting interior design services" at all. Plaintiff contends Defendant's operation of an independent interior design business violates her fiduciary duties to the LLC because the two businesses are competing for a limited number of clients in the region. However, Plaintiff has not submitted substantial evidence that Defendant's interior design business has actually appropriated the LLC's assets or taken any specific client(s). Plaintiff's declaration extensively describes the parties' negotiations to dissolve the LLC, but includes minimal information about Defendant's separate business and its effect on the LLC. At most, Plaintiff has established Defendant sent a holiday card announcing her new business to the LLC's clients. Therefore, Plaintiff has not demonstrated that Plaintiff individually (or the LLC, although the LLC is not a party to this motion) will suffer substantial harm if the motion is denied. On the other hand, broadly prohibiting Defendant from operating her independent business would result in substantial harm by preventing her from pursuing her career and earning a living now that her involvement in the LLC is diminished. Therefore, Plaintiff has not shown that issuance of a preliminary injunction is necessary at this time.
9	23-01360897 <i>Marin-Gonzalez vs. Escalante Morroquin</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Peter E. Garrell to withdraw as attorney of record for Defendant Kimberly Escalante Morroquin is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.